

Non præstat impedimentum quod de jure non sortitur effectum. The first indictment, because it is void, can be no hinderance to a second. The coroner has nothing to do with the accessaries after the fact; for they do not concern the life of the man slain, but the receipt of the manslayer.

CASE IX. 2 R. 3, 7. Corporation, Precedents.

The mayor and commonalty of Southampton have an assignment from the King of a sum of money, to be paid yearly to them and their successors, out of the customs of this town and port: the mayor alone makes an acquittance upon receiving it; this does not bind the corporation in strictness of law; but because 100 precedents were shewn which allowed it, it was allowed by all the judges of England.

[163] The mayor and commonalty are one indivisible body: the mayor, as mayor, can do nothing regularly; for he is the head of the corporation aggregate, and is only a part of it: but usage and precedents are not to be neglected in things indifferent, or which are not mala in se.

Novitas perturbat; nil temere novandum.

CASE X. 2 R. 3, 81. 1 Cr. 452. 35 H. 7, 16. Statutes, Process, Eviction, Certificate, Retorne de Viscount.

A statute staple or merchant is once certified in Chancery, there is no occasion for a new certificate if the conusee dies; but there is occasion if the Chancellor be named by his Christian name, and dies; or if the first certificate was insufficient. Upon a statute staple, a *capias* and extent of lands, goods, and chattels are contained in one writ; but it is not so upon a statute-merchant. If the land be extended upon this writ, and the body be not found; a new *capias* shall not be directed to the sheriff of another county, without a *testatum* that *latitat* there. The executor of the conusee must have a new certificate; for the certificate had in the life of the conusee will not serve. A *scire facias* does not lie for the executor; for the statute prescribes the process, and that must be used: as Westm. 2, cap. 35, gives the writ of ravishment of ward; this writ has not the words *vi & armis*: for this would not follow the form prescribed by the statute. Lands extended are evicted, at common law a new extent would not lie; so if the husband died seised in right of his wife: but at this day, by the statute 37 H. 8, where there is a total eviction, a new extent may be awarded. But at common law, and at this day, such eviction does not hinder a *capias* for the body of the conusor. Where, after a younger statute is extended, an *extendi facias* upon an elder statute comes to the sheriff; the sheriff has his choice whether to return this matter, or to extend the elder statute.

By all the judges of England.

CASE XI. 2 R. 3, 13, 21. 9 El. Dyer, 258. 14 El. Dyer, 320. Action sur le case. *Ayd le Roy*.

A. brought an action upon the case against the bishop of Ely, for claiming the plaintiff to be his villein, and lying in wait to take him, so that he dared not attend his business; the defendant pleads that the plaintiff is his villein regardant to his manor of Dale; and upon this they are at issue; pending which, the said manor was seised into the King's hands, for an offence committed by the bishop; and upon this, a writ was awarded out of Chancery, that no proceeding should be *Rege inconsulto*: for, if a trial should pass for the plaintiff, it might be evidence against the King.

By the judges of both benches.

The King may grant his aid, or *Rege inconsulto*, in trespass and *ejectione firmæ*; but a search can be granted only upon a petition of right.

CASE XII. 2 R. 3. Dally, 109. Fitz. Estoppel, 181.

A. is bound to B. in an obligation; A. is named of Dale without an addition; B. sues A. upon this obligation; A. shall not be received to plead, that there is Over-Dale, and Nether-Dale, and that there is no Dale without an addition: for the

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